

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 09/14/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

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ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWIJCdHlIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWIJCdHlIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00904

CASE NAME: P. D. VS. DOE 1

*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS

FILED BY: COUNTY OF CONTRA COSTA

TENTATIVE RULING:

Introduction

Before the Court is Defendant County of Contra Costa's Motion for Judgment on the Pleadings (MJOP). The MJOP relates to Plaintiff P.D.'s First Amended Complaint (FAC) filed on May 20, 2022, for a single negligence cause of action against the County of Contra Costa.

Defendant County of Contra Costa moves for judgment on the pleadings on the grounds that discretionary immunity under Government Code sections 820.2 and 815.2(b) bar Plaintiff's negligence claim against the County.

For the following reasons, Defendant Contra Costa County's MJOP is **GRANTED with leave to amend.**

Meet and Confer Requirement

Defendant satisfies their meet and confer requirements for their MJOP in detailing their efforts in reaching out and speaking to Plaintiff's counsel on April 10, 2026, but the parties were unable to resolve the outstanding issues. (McCord Decl. ¶¶ 3-4.)

Factual Background

Plaintiff's FAC makes the following allegations.

In approximately 1969, when Plaintiff was about seven years old, the County placed Plaintiff in Edgar Children's Shelter group foster home, located in Contra Costa County. (FAC ¶ 24.) The Group Home was approved, licensed, trained, supervised, and/or compensated by the County. (Id.) In that same year, Plaintiff was sexually abused and assaulted by an older resident of the Group Home (the "Perpetrator"). The Perpetrator abused Plaintiff multiple times over an approximate six-month period. (FAC ¶ 25.)

While the abuse was ongoing, Plaintiff reported the abuse on separate occasions to several different Group Home employees. (FAC ¶ 28.) Plaintiff additionally disclosed that he was being sexually abused and/or assaulted to his caseworker, Nina Rosen, an employee and/or agent of the County. (FAC ¶ 29.) During Plaintiff's check-ins with the juvenile court, Plaintiff would scream and cry that he was afraid of the Group Home, felt unsafe there, and did not want to go back. (FAC ¶ 30.) Despite the foregoing, "no action was taken, no investigation was completed, and Perpetrator continued to sexually abuse and/or assault Plaintiff." (FAC ¶¶ 30-31.)

The County was in a special relationship of in loco parentis or caregiver-child with Plaintiff throughout his placement in the Group Home, in which the County owed Plaintiff a duty of reasonable care to protect him from foreseeable harm. (FAC ¶ 19.) The FAC asserts a negligence cause of action against the County, based upon, inter alia, the County's failure to protect Plaintiff from sexual abuse, sexual assault and lewd and lascivious acts; failure to adequately, properly and completely investigate whether Plaintiff was safe and free from maltreatment; failure to adequately, properly and completely investigate the acts and conduct of Perpetrator; failure to establish and to implement and enforce policies and procedures adequate to protect the health, safety and welfare of foster children; failure to adequately monitor and supervise Plaintiff; failure to adequately hire and train employees, agents and case workers; concealment of the County's knowledge that Perpetrator was unsafe and posed a risk of child sexual abuse; and failure to report suspected sexual abuse of a minor to law enforcement. (FAC ¶ 46 [citing Cal. Welf. & Inst. Code §§ 328, 16501(f), 16504; Cal. Health & Safety Code § 1522, et seq.; Cal. Pen. Code §§ 11165.7, 11165.9 and 11166; Dept. of Soc. Svcs. Child Welf. Svcs. Manual §§ 31-320, 31-401, et seq., and 31-501].)

Legal Standard

A motion for judgment on the pleadings has the same function as a demurrer and the rules governing demurrers generally apply. (*Cloud v. Northrup Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) As a consequence, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; *Weil & Brown, et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) ("Weil & Brown") § 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061; *Burnett, supra*, 123 Cal.App.4th at p. 1064.) In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action.

(*Fire Ins. Exchange v. Sup. Ct.* (2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil & Brown, § 7:295.)

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

Negligence Against a Public Entity

To state a cause of action for negligence, a plaintiff must plead (1) defendant’s legal duty of care to plaintiff; (2) breach of that duty; (3) injury proximately caused by that duty; and (4) damages to plaintiff. (*Williams v. Bechnut Nutrition Corp.* (1986) 185 Cal. App. 3d at 141.) Where a public entity is sued, the basis for its liability for negligence can be either California Government Code Sections 815.2 and 815.4, which provide that public entities can be vicariously liable for injuries caused by the acts or omissions of their employees and/or independent contractors, or Section 815.6, which provides that public entities can be directly liable for negligence where they fail to discharge mandatory duties: “Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge that duty.” (Cal. Govt Code § 815.6.) An enactment for purposes of section 815.6 may include both formal legislative measures, such as statutes, and quasi-legislative measures, such as regulations adopted by state agencies. (See e.g., *Jacqueline T. v. Alameda County Child Protective Services* (2007) 155 Cal. App. 4th 456, 469.)

Duty

A defendant does not owe a legal duty to protect against third party conduct, unless there exists a special relationship between the defendant and the plaintiff. (*Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 235.)

Special Relationship

Notably, “a typical setting for the recognition of a special relationship is where the plaintiff is particularly vulnerable and dependent upon the defendant who, correspondingly, has some control over the plaintiff’s welfare.” (*Regents of University of California v. Superior Court* (2018) 4 Cal.App.5th 607, 621 [internal quotations, citation omitted].) A special relationship arises in relationships involving “dependence or control,” in which individuals “by virtue of those relationships have reason to expect the defendant’s protection.” (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213.)

Here, Plaintiff “was wholly dependent upon the good offices of the County to supervise [his] placement.” (*Ronald S. v. County of San Diego* (1993) 16 Cal.App.4th 887, 895.) As alleged in the FAC, Plaintiff was a child in the County’s custody when the County placed Plaintiff in the Group Home, where his County-assigned caseworker, Nina Rosen, supervised his placement. (FAC ¶¶ 24, 29.)

Plaintiff has sufficiency alleged a basis for a special relationship existed between Defendant Contra Costa County and Plaintiff, a dependent child in foster care.

Discretionary Immunity

The decision to apply discretionary act immunity requires a two-part analysis. (*D.G. v. Orange County Social Services Agency* (2025) 108 Cal.App.5th 465, 473.) First, we decide whether the decision at issue is a discretionary, as opposed to a ministerial one. (*Id.*) Decisions of child welfare agency employees—regarding determinations of child abuse, the potential risk to a child, placement of a child, removal of a child, and other resultant actions—are subjective *discretionary* ones that are incidental to the employees' investigations. (*B.H. v. County of San Bernardino* (2015) 62 Cal.4th 168, 191–92.)

The second part of the discretionary act immunity analysis is whether the employee who made the decision at issue “actually reached a considered decision knowingly and deliberately encountering the risks that give rise to plaintiffs complaint. ... [¶] ... [T]o be entitled to immunity the state must make a showing that such a policy decision, consciously balancing risks and advantages, took place. The fact that an employee normally engages in ‘discretionary activity’ is irrelevant if, in a given case, the employee did not render a considered decision.” (*D.G. v. Orange County Social Services Agency* (2025) 108 Cal.App.5th 465, 473–474; citing *Johnson v. State of California* (1968) 69 Cal.2d 782, 794–795, fn. 8.) In *Caldwell v. Montoya* (1995) 10 Cal.4th 972, the California Supreme Court applied the same test: “*Johnson* precludes a finding of immunity solely on grounds that ‘the [affected] employee's *general course of duties* is “discretionary” ... and requires a showing that ‘the specific conduct giving rise to the suit’ involved an *actual* exercise of discretion, i.e., a ‘[conscious] balancing [of] risks and advantages.’” (*Caldwell v. Montoya* (1995) 10 Cal.4th 972, 983.)

In *K.C. v. County of Merced*, the Court of Appeal addressed the application of discretionary immunity to acts of a social worker on demurrer. (*K.C. v. County of Merced* (2025) 109 Cal.App.5th 606, 619–20.) In *K.C.*, as here, the plaintiff alleged that she was (1) sexually assaulted in county foster care placements, (2) put the county on notice by reporting the abuse to social workers, and (3) no investigative or corrective action was taken. (*Id.* at 610–12.) The court concluded that a social worker’s decisions relating to “the investigation of child abuse” and discontinuation of a foster home placement “based upon suspicion of abuse” not only “involve[] the exercise of analysis and judgment as to what is just and proper under the circumstances” but also constitute “sensitive policy decision[s] that require[] judicial abstention to avoid affecting a coordinate governmental entity’s decision-making or planning process” (*Id.* at 617.) Defendant argues that *KC* should govern because the facts are almost identical to the current facts and that this Court should also sustain the pleading challenge without leave to amend.

However, there is a major distinction between *K.C.* and the present facts. In *K.C.* the court does not address any allegations of mandatory duties. By definition the mandatory duties that Plaintiff alleges in their FAC cannot be affected by discretionary immunity.

Mandatory Duty Exception to Immunity

To qualify for Government Code section 815.6's mandatory legal duty exception to Government Code section 815's immunity rule, a plaintiff must establish (1) the existence of an enactment that imposes a mandatory, not discretionary, duty on the public entity and (2) that the enactment is intended to protect against the particular kind of injury the plaintiff suffered. (*Haggis v. City of Los Angeles* (2000) 22 Cal.4th 490, 498–499.) A mandatory duty is one that is obligatory and requires a specific course of conduct. (*B.H. v. County of San Bernardino* (2015) 62 Cal.4th 168, 180.)

Defendant points out that several of the statutes and regulations identified in the FAC postdate the alleged conduct or are cited in versions that were not in effect during the relevant period. These include Welfare and Institutions Code sections 328, 16501, subdivision (f), and 16504; Health and Safety Code section 1522; Penal Code sections 11165.7, 11165.9, and 11166; and provisions of the Department of Social Services Manual. (FAC ¶¶ 21, 57.)

Plaintiff alleges that the relevant conduct occurred beginning in approximately 1969. (FAC ¶¶ 24–25.) The issue is therefore whether the law in effect at that time imposed the specific duties Plaintiff alleges were breached, not whether those duties exist under later enacted statutes and regulations. Thus, the Court must grant the MJOP but the Court will grant Plaintiff leave to amend to allege enactments that applied at the time of the alleged injury and to plead the correlating mandatory duties in their amended pleading.

Conclusion

For the reasons analyzed above, Defendant Contra Costa County’s MJOP is **GRANTED with leave to amend.**

2. 9:00 AM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE
***HEARING ON MOTION IN RE: LEAVE TO FILE CROSS-COMPLAINT AGAINST DAN HARKINS**
INDIVIDUALLY AND AS RECEIVER
FILED BY: CAFIERO, DEAN
***TENTATIVE RULING**

On the Court's own motion, the hearing is continued to 9:00 a.m. on October 5, 2026.

3. 9:00 AM CASE NUMBER: C24-01318
CASE NAME: DAMIAN MCKENNA VS. HOMESITE INSURANCE COMPANY OF CALIFORNIA
MOTION TO BE RELIEVED AS COUNSEL AS TO DEF WHAT'S GOOD FOR YOUR SOUL
FILED BY:
TENTATIVE RULING:

Gerald J. Beaudoin (“Counsel”) filed a Motion to be Relieved as Counsel on August 5, 2026 (the “Motion to be Relieved as Counsel”). The Motion to be Relieved as Counsel was set for hearing on September 14, 2026. The motion is unopposed.

Background

Counsel seeks to be relieved as attorneys for defendant What's Good for Your Soul, LLC (the “Client”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship, including as a result of a disagreement over the handling of the case and financial arrangements with Counsel. See Declaration filed August 5, 2026, ¶12. The Client has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court will issue the proposed order after hearing submitted with the moving papers.

4. 9:00 AM CASE NUMBER: C24-02427
CASE NAME: REPUBLIC FLOOR, LLC VS. KARIN FAAPOULI
MOTION TO BE RELIEVED AS COUNSEL MOTION FILED TO BE RELIEVED AS COUNSEL
FILED BY: SAMOAN CONGREGATIONAL CHURCH OF JESUS CHRIST IN DALY CITY
TENTATIVE RULING:

Paul R. Perdue ("Counsel") filed a Motion to be Relieved as Counsel on July 31, 2026 (the "Motion to be Relieved as Counsel"). The Motion to be Relieved as Counsel was set for hearing on September 14, 2026.

Background

Counsel seeks to be relieved as attorneys for defendant Samoan Congregational Church of Jesus Christ In Daly City (the "Client").

The supporting declaration filed by Counsel indicates that, among other reasons, financial considerations make the ongoing representation untenable. See Declaration filed July 31, 2026, ¶2. The Client has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court will issue the proposed order after hearing submitted with the moving papers.

5. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: MASOUDI, ELISABETH B.
TENTATIVE RULING:

On the Court's own motion, the hearing is continued to 9:00 a.m. on September 28, 2026.

6. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
HEARING ON DEMURRER TO: PLAINTIFF'S SECOND AMENDED COMPLAINT
FILED BY: ZAKHEIM, SIMONA YANA S.

TENTATIVE RULING:

On the Court's own motion, the hearing is continued to 9:00 a.m. on September 28, 2026.

7. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
*HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF PLAINTIFF'S SECOND AMENDED COMPLAINT
FILED BY: ZAKHEIM, SIMONA YANA S.

TENTATIVE RULING:

On the Court's own motion, the hearing is continued to 9:00 a.m. on September 28, 2026.

8. 9:00 AM CASE NUMBER: C25-01478
CASE NAME: EMAD ISKANDER VS. JOAN OCAMPO (EMPLOYEE)
*HEARING ON MOTION IN RE: MOTION FOR ORDER VACATING AND SETTING ASIDE DEFAULT JUDGMENT
FILED BY:

TENTATIVE RULING:

Pursuant to the unopposed ex parte application to continue the hearing date, the hearing date is **CONTINUED** to **October 19, 2026, 9:00 a.m.**, in **Department 34**. The Court is issuing a separate order regarding the continuance. The Court's order denies the request for leave to submit any further papers.

9. 9:00 AM CASE NUMBER: C25-01639
CASE NAME: ROSS IVICA VS. SHAPELL NORCAL RENTAL PROPERTIES LLC
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT
FILED BY: SHAPELL NORCAL RENTAL PROPERTIES LLC

TENTATIVE RULING:

Before the Court is Defendant Shapell Norcal Rental Properties, LLC's and Defendant Shapell Falcon Bridge LLC's (collectively, "Defendants") motion to strike portions of Plaintiff Ross Ivica's ("Plaintiff") First Amended Complaint ("FAC"). Plaintiff, who is in pro per, alleges causes of action for (1) Wrongful Eviction; (2) violation of Covid-19 Rental Housing Recovery Act; (3) Unfair Business Practices; (4) Breach of the Covenant of Quiet Enjoyment; and (5) Breach of Statutory Duty.

For the following reasons, Defendants' motion is **GRANTED**, with leave to amend.

Legal Standard

Civil Code section 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code § 3294.)

Code of Civil Procedure section 436 provides:

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(Code Civ. Proc. § 436.)

Motion

Defendants seek to strike paragraphs 42 through 46, 63 and portions of prayer paragraph 4 that seek punitive damages (the "Punitive Damages Related Allegations") pursuant to Code of Civil Procedure sections 435 and 436.

Analysis

A plaintiff must plead more than conclusory allegations to seek punitive damages. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042.) "In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Plaintiff must plead specific facts showing that Defendants' conduct was oppressive, fraudulent or malicious. (See *Smith v. Sup.Ct. (Bucher)* (1992) 10 Cal.App.4th 1033, 1041-1042.) Plaintiff has not done so. Plaintiff does not allege any "base, vile, or contemptible" conduct. (see *College Hospital Inc. v. Superior Court, supra*, 8 Cal.4th at 725). The FAC is bereft of any specific facts showing that Defendants' conduct was oppressive, fraudulent, or malicious. The conclusory allegations that

Defendants “acted with malice, oppression, and fraud,” “knowingly submitted, or caused to be submitted, false and misleading sworn statements to the court regarding Plaintiff’s eligibility for Covid-19 rental assistance,” and “Defendants willfully blocked Plaintiff from paying rent while knowing that he had funds available and was attempting to pay in full” (FAC at ¶¶ 42-44) are insufficient.

Furthermore, when seeking punitive damages against a corporation like Defendants, Plaintiff must allege “advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud or malice ... on the part of an officer, director or managing agent of the corporation.” (Civ. Code §3294.) A review of Plaintiff’s FAC shows that there are no allegations regarding the conduct of an officer, director, or managing agent of Defendant. Accordingly, this requirement of pleading punitive damages against a corporation has not been satisfied. (See Code Civ. Proc. § 3294(b).)

Disposition

The Court finds and orders as follows:

1. Defendants’ motion to strike is GRANTED. The Punitive Damages Related Allegations in the operative Complaint are deemed STRICKEN.
2. Leave to amended is GRANTED. Code Civ. Proc. § 472a(d). Any amended complaint shall be filed and served within ten (10) days of notice of entry of this order.
3. The moving party shall prepare the proposed order after hearing.

10. 9:00 AM CASE NUMBER: C25-02209
CASE NAME: BRASS DOOR RESTAURANT INCORPORATED VS. 8 TO 5 PROPERTIES LLC
***HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT**
FILED BY: 8 TO 5 PROPERTIES LLC
TENTATIVE RULING:

Before the Court is a motion to strike filed by defendants, 8 to 5 Properties LLC, and its managing member, Nancy Schlesinger, with respect to the First Amended Complaint, filed by plaintiff, Brass Door Restaurant Incorporated. The motion to strike is **DENIED**. Defendants shall file and serve their answer, as previously ordered, on or before September 24, 2026.

A. Allegations and Background

This is a commercial lease dispute involving a property in San Ramon at which plaintiff operated a restaurant. 8 to 5 Properties, LLC entered into the current lease with plaintiff's predecessor in interest on July 1, 2015. (FAC, Exhibit A [Lease].) The Lease is a 10-year lease with two 5-year options. Plaintiff took over the lease in March 2016. Rent at the time was \$14,000 per month, and has increased each year such that it was \$20,427.01 per month as of June 1, 2025. (FAC, ¶10-11.)

Plaintiff had been an exemplary tenant during the past 9 years of lease performance and has generally paid rent on time and in full and maintained the premises in good condition. (FAC, ¶12.) When the Covid pandemic hit, plaintiff, like every other restaurant in California, found itself subject to state and local government's severely restrictive shelter-in-place rules and could not operate at all, or was limited to takeout-only. (FAC, ¶13.) The rules severely impacted cash flow, including plaintiff's

ability to pay rent. (*Ibid.*) Plaintiff conferred with its landlord about this emergency situation in April and May 2020. They agreed at that time that defendants would forgive April 2020 rent and reduce rent from May 1, 2020 - September 30, 2020. In conformance with parties' agreement, plaintiff started paying full rent in October 2020. (FAC, ¶14.)

Despite receiving full rent, defendant landlord has "agitated" for more money from plaintiff, demanding approximately \$63,000. (FAC, ¶15.) Defendant landlord has further raised meritless complaints about maintenance, reported plaintiff to the local health department, and sent people to inspect the property without warning and at times when the inspections interfered with plaintiff's business. (FAC, ¶¶16-19.)

Plaintiff took actions to exercise its option to extend the lease. Specifically, Shahla Azad corresponded with the property manager for defendants. In her correspondence, Shahla proposed an adjustment to the amount of rent. Defendants have since attempted to repudiate that the option was exercised and charge holdover rent. (FAC, ¶¶20-24.)

On May 23, 2025, parties mediated the dispute and negotiated an agreement to address this impasse. (FAC, Exhibit B [interim settlement agreement]).

Plaintiff alleges, in paragraph 26:

In an effort to negotiate an agreement to address this impasse, the parties mediated the dispute on May 23, 2025. At the end of the mediation, DEFENDANT and SCHLESINGER committed to producing a proposed lease for the upcoming option period. The purpose of the interim agreement was to provide a bridge between the stated termination date of the Lease and August 1, 2025 when the parties would commence the first 5-year option period of the Lease. As the interim agreement was an extension of the Lease agreement between the parties, it was not subject to any mediation confidentiality.

Parties agreed to a third party inspection, which occurred and concluded the premises were in "fair to good condition." Still, after the inspection, defendants demanded plaintiff conduct over \$200k in immediate repairs. (FAC, ¶28.) As of July 31, 2025, the interim agreement expired and defendants failed to comply with the terms of the interim agreement and the option provision of the lease. (FAC, ¶29.)

Plaintiff made a good faith effort to continue operating through 2025 and continued to pay rent while defendants "continued their campaign of harassment," but plaintiff finally made the decision to give up possession of the premises. (FAC, ¶¶30-31.)

Prior to, and after, returning possession, Shahla Azad made statements publicly that she would re-open Brass Door at another location. (FAC, ¶32.) Around December, Azad became aware that defendants had been posting written notices on various social media indicating that Schlesinger would "re-open" Brass Door under "new management." Defendants created a "Brass Door" Facebook page and then blocked plaintiff from accessing the page in an effort to hide efforts to market the "new" Brass Door. (FAC, ¶33.) Plaintiff also learned defendants applied to the US Patent and Trademark Office to trademark the "Brass Door" name and trademark. (FAC, ¶34.)

Plaintiff brought suit on August 1, 2025. On March 9, 2026, the FAC was filed, alleging: (1) Breach of Lease; (2) Breach of Covenant of Good Faith & Fair Dealing; (3) Intentional Interference With Prospective Economic Advantage; (4) Promissory Estoppel; (5) Temporary Restraining Order & Preliminary Injunction; (6) Declaratory Relief; (7) Breach of the Covenant of Quiet Enjoyment, and

(8) Constructive Eviction.

After efforts to meet and confer (see Declaration of Pritpal Singh in Support of Motion to Strike, filed 4/15/26), defendants filed this motion, arguing that the FAC contains allegations subject to the meditation privilege and the content should be stricken.

Plaintiff opposes the motion, arguing that the FAC is based on a settlement agreement that may have resulted from meditation, but which is not made inadmissible under the relevant statutes. At the time of writing, no reply has been received.

B. Standard

Any party may move to strike the whole or any part of a pleading within the time allotted to respond to the pleading. (Code Civ. Proc., § 435, subd. (b)(1).) The court *may*, upon such motion, strike out “any irrelevant, false, or improper matter inserted in any pleading,” or “all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436, emphasis added.) The allegations of a complaint “must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “read[s] allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume[s] their truth.” (*Clauson v. Sup. Ct.* (1998) 67 Cal.App.4th 1253, 1255.)

C. Discussion

Defendants’ motion argues that numerous portions of the FAC should be stricken based on their being inadmissible mediation writings or communications. The majority of the memorandum of points and authorities is dedicated solely to listing these portions of the FAC, which defendants contend fall into four categories: references to communications made during the mediation, references to the interim agreement, the interim agreement itself (Exhibit B to the FAC), and allegations that relate to the terms of the interim agreement.

Plaintiff concedes that “statements made at mediation” are barred by the mediation privilege. Still, plaintiff cites an exception to the mediation privilege regarding the Interim Settlement Agreement. Evidence Code § 1123(d) states that a “written settlement agreement prepared in the course of, or pursuant to, a mediation, is not made inadmissible, or protected from disclosure, by provisions of [the mediation statutes] if the agreement is signed by the settling parties and [...] [t]he agreement is used to show fraud, duress, or illegality that is relevant to an issue in dispute.”

Here, the Interim Settlement Agreement is signed by both sides. While the agreement does not expressly provide that the settlement is binding or enforceable, plaintiff alleges that defendants’ conduct amounted to fraud, duress, or illegality because plaintiff was induced to forbear from pursuing other alternative locations, putting full time and effort into maintaining and maximizing business at the premises it had been leasing to date. (See FAC, ¶172.)

As noted in the Court’s prior ruling on the demurrer, plaintiff’s position has merit. The purpose of mediation confidentiality is to ensure open communication and promote “a candid and informal exchange regarding events in the past.” (*Foxgate Homeowners’ Assn. v. Bramalea California, Inc.* (2001) 26 Cal.4th 1, 14.)

In this instance, that objective would not be promoted by applying confidentiality statutes to prevent one settling party from enforcing a settlement agreement signed by the party allegedly reneging on the settlement. Parties here apparently intended to continue negotiating in good faith based in part on defendants’ commitment to provide a new proposed lease. They made such continued negotiation contingent on some baseline requirements which defendants seek to conceal

through the mediation privilege.

Finally, the specific portions of the FAC at issue are not numbered as required (Cal. Rules of Court, rule 3.1322 requires them to be “numbered consecutively”) and the list of the items subject to the motion contains several errors that make it difficult to determine what is being targeted. To name a couple of examples, the line numbering is wrong as to the purported contents of paragraph 54 and the quoted text does not exist in paragraph 78. Other items are overbroad. For example, the targeted statement in paragraph 98 alleges “plaintiff had no choice but to vacate due to defendants’ harassment [...]” and that statement has nothing to do with mediation.

The Court declines to strike the targeted portions of the FAC.

11. 9:00 AM CASE NUMBER: C26-00187
CASE NAME: SEBRION MCHENRY-STEWART VS. JESSE GILLESPIE
HEARING IN RE: MOTION AUTHORIZING SERVICE ALTERNATIVE
FILED BY:

TENTATIVE RULING:

On April 21, 2026, plaintiff Sebrion Mchenry-Stewart (“Plaintiff”) filed a motion for leave to serve defendants Jesse Gillespie and Regional Protection Agency Services Inc. (“Defendants”) by email as an alternative method of service (the “April 2026 Motion for Leave to Serve by Email”). The April 2026 Motion for Leave to Serve by Email was set for hearing on June 29, 2026.

Background

Plaintiff filed this action on January 20, 2026. The Petition seeks monetary damage and enforcement of a Decision of the Labor Commissioner of the State of California in Plaintiff’s favor dated December 18, 2025 (the “Decision”).

Plaintiff previously filed a motion for leave to serve Defendants by email on February 19, 2026 (the “February 2026 Motion for Leave to Serve by Email”). That prior motion was heard on June 29, 2026 and denied.

This motion was filed while the prior motion was still pending. It is not clear to the Court why this April 2026 Motion for Leave to Serve by Email was filed when the February 2026 Motion for Leave to Serve by Email was still pending and had a hearing date in June 2026.

Despite the apparent procedural irregularities, the Court has considered this separate motion.

Analysis

Plaintiff references Code of Civil Procedure section 415.20. That section provides for what is often described as “substitute service.” Substitute service on a defendant at their place of residence requires a three-step process (1) leave a copy of the summons and complaint at the defendant’s dwelling; (2) with a “competent member of the household,” and (3) thereafter mailing a copy to the defendant at the place where the copies were left. Code Civ. Proc 415.20(b); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 4:206.

Leave of the Court is not required before a party resorts to substitute service to serve a party.

In any event, Section 415.20 does not apply to what Plaintiff is seeking, i.e. permission to serve the Defendants by email.

Although no applicable authority is cited by Plaintiff, the Court will presume that the application is brought pursuant to Code of Civil Procedure section 413.30. See Code Civ. Proc. § 413.30(a)(1) (“...if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court.”).

Plaintiff has not properly submitted evidence in support of the present motion establishing that despite reasonable diligence, Plaintiff has been unable to effect service of the summons by any of the methods authorized under the Code of Civil Procedure.

A declaration filed April 21, 2026 by Plaintiff describes an email address identified through a “skip trace” search and attaches a copy of the search results. No other proper declaration was filed in connection with the motion.

Plaintiff did not file a declaration under penalty of perjury setting out all of the efforts to effect service of process on Defendants. For that reason alone, the motion is defective.

Even if the Court were to consider the unsworn statements by Plaintiff in the motion brief and consider several returns of non-service filed on the docket months after the motion papers, in June 2026, the showing is still inadequate.

As best as the Court can glean, an address for defendant Jesse Gillespie was identified in Las Vegas, Nevada (3922 Jacob Lake Cir, Las Vegas, NV 89118-4436) (the “Las Vegas Address”). The returns of non-service filed in June 2026 by a process server shows three attempts on two days (3/18/2026 and 3/28/2026) at the Las Vegas Address. The process server reported indicia that defendant Jesse Gillespie was not a resident at that location.

There is no further showing regarding efforts to serve defendant Jesse Gillespie, including at his place of business. There is no showing as to any publicly available information about any currently operating location for named defendant Regional Protection Agency Services Inc. or efforts to serve the Defendants there. For example, does the business have a website or other online presence from which it may gleaned where it operates in California?

Plaintiff simply states “Plaintiff also attempted service on REGIONAL PROTECTION AGENCY, LLC, including its last known business and registered agent address.” That says nothing about what the “last known business” and “registered agent address” are, nor how many attempts were made or by whom. No declaration by any process server attempting service at any such locations was proffered in support of the motion.

The Court does not find any basis to order service of process on either of the Defendants by email.

Lastly, as noted previously, it is not clear to the Court why this suit is being pursued if the Labor Commissioner may initiate the appropriate process to confirm a court judgment based on its Decision.

Disposition

The Court finds and orders as follows:

1. The April 2026 Motion for Leave to Serve by Email is **DENIED**.
2. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C26-00384

CASE NAME: MATHIEU CASSAGNE VS. FCA US LLC

*MOTION/PETITION TO COMPEL ARBITRATION

FILED BY: FCA US LLC

TENTATIVE RULING:

Introduction

Before the Court is Defendant FCA US LLC's ("FCA" or "Defendant") motion to compel arbitration and stay this action. The Motion relates to Plaintiffs' Complaint for two causes of action breach of express and implied warranties under the Song-Beverly Consumer Warranty Act filed on February 3, 2026.

For the reasons explained below, Defendant's motion to compel arbitration is **GRANTED**.

Legal Standard for Motions to Compel Arbitration

A motion to compel arbitration "is in essence a suit in equity to compel specific performance of a contract." (*Cal. Teachers Ass'n v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399, citation omitted.) "A party who files a motion to compel arbitration 'bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.'" (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.)

In California, "[a] strong public policy favors the arbitration of disputes, and doubts should be resolved in favor of deferring to arbitration proceedings." (*Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1404-1405 [citation omitted].) "A trial court is required to order a dispute to arbitration when the party seeking to compel arbitration proves the existence of a valid arbitration agreement covering the dispute." (*Id.* [citation omitted]; Cal. Civ. Code Proc. § 1281.2.) As a result of this public policy, "a heavy presumption weighs the scales in favor of arbitrability..." (*Cione v. Foresters Equity Servs., Inc.* (1997) 58 Cal.App.4th 625, 642 [citation omitted].)

Evidentiary Objections

Plaintiff's Objections

- 1) OVERRULED.
- 2) OVERRULED.
- 3) OVERRULED.
- 4) OVERRULED.
- 5) OVERRULED.

Analysis

Defendant's Initial Burden

The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164.) The moving party bears the burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) The moving party “can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 citing *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543–44.)

Defendant has presented a signed an Agreement to Arbitrate between Defendant and Plaintiff, a document separate from the Lease Agreement between Plaintiff and the dealership. The custodian of records for the dealership, Finance Manager and Custodian of Records Shaun Brittain, authenticates the Agreement to Arbitrate between Defendant and Plaintiff. (Brittain Decl. ¶¶ 6-8.)

Thus, Defendant has met its burden by proving the existence of a valid arbitration agreement between it and Plaintiff. Now the burden shifts to Plaintiff to prove a valid defense to the arbitration agreements exist by a preponderance of the evidence.

Authentication of the Agreement to Arbitrate

Authentication standards are relaxed in petitions to compel arbitration. “Normal authentication procedures” are not required. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218–219.) Once the moving party produces the agreement, the burden shifts to the opposing party to show that the document is inauthentic. Plaintiff has not met this burden.

Plaintiff argues that Defendant has failed to provide competent evidence of an arbitration agreement.

Defendant has submitted the standalone “Agreement to Arbitrate”, bearing Plaintiff’s signature. Pursuant to that agreement, both parties agreed that Plaintiff or FCA would resolve any dispute through a neutral, binding arbitration process, not via court action.

A document may be authenticated by a witness who is familiar with the record-keeping system used to generate it. (Evid. Code, § 1414; *People v. Goldsmith* (2014) 59 Cal.4th 258, 266–267.) Declarant, Finance Manager, and Custodian of Records Shaun Brittain identifies the source of the documents (FCA’s business records), explains how they were obtained in the regular course of business, and describes their contents with sufficient detail. Plaintiff does not dispute receiving the documents or that Plaintiff’s signature appears on them.

Plaintiff offers no credible competing evidence and does not deny executing the subject agreement. Defendant has met its burden of proving the existence of a signed arbitration agreement and Plaintiff has not rebutted that showing.

Defendant argues that to the extent that Plaintiff raises hearsay objections, the subject agreement falls within the business-records exception and is independently admissible as an operative contractual document. Defendant also contends that the agreement is offered for to prove its existence, not for the truth of its contents.

Consideration in the Agreement to Arbitrate

Plaintiff contends that the subject Agreement is void for lack of consideration. This is incorrect. Plaintiff received the express written warranty for their vehicle issued by FCA, the terms of which they now seek to enforce. Plaintiff argues that FCA made “affirmations, promises, and descriptions of the goods sufficient to create an express warranty through advertisement of the warranties to the general public.” But the same express warranties Plaintiff cites contain the arbitration provision they now seek to avoid. Plaintiff cannot seek to enforce the warranties FCA issued in a warranty action but choose to enforce only those terms they select.

Furthermore, mutual promises to arbitrate also constitute adequate consideration for an arbitration agreement. (See *Garner v. Inter-State Oil Co.* (2020) 52 Cal.App.5th 619, 625.) The first line under the notice of agreement to arbitrate reads, “Pursuant to the Agreement to Arbitrate contained below, you agree that you or FCA will resolve any dispute through a neutral, binding arbitration process and not by a court action.” Thus, even if Defendant had not offered a warranty contract as consideration for Plaintiff’s Agreement to Arbitrate, the subject agreement would be supported by consideration based on the parties’ mutual obligation to arbitrate their disputes.

Lastly, Defendant notes that California law presumes written agreements are supported by adequate consideration (Civ. Code §§ 1614–1615.) and Plaintiff has presented no evidence rebutting that presumption.

Absence of Defendant’s Signature

Defendant can enforce the agreement without signing it. “[T]he writing memorializing an arbitration agreement need not be signed by both parties in order to be upheld as a binding arbitration agreement.” (*Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal.App.4th 165, 176 (*Serafin*).) “Just as with any written agreement signed by one party, an arbitration agreement can be specifically enforced against the signing party regardless of whether the party seeking enforcement has also signed, provided that the party seeking enforcement has performed or offered to do so.” (*Id.* at p. 177.) The nonsignatory must provide evidence confirming the existence of an agreement, which can be based on conduct showing implied ratification or acceptance. (*Id.* at p. 176.) In *Serafin*, the court found sufficient evidence where the employer wrote the agreement, the agreement was printed on its letterhead, and the employer showed its intent to be bound by filing a motion to compel arbitration. (*Id.* at pp. 176-177.)

The agreement states “...this agreement to arbitrate ... applies to any dispute between you and FCA US LLC and its affiliates (together “FCA,” “Stellantis,” “we” or “us”).” (Brittain Decl., Ex. B.) The Agreement bears a Stellantis letterhead, and it repeatedly refers to “FCA” (*Id.*) The agreement defines “FCA US LLC and its affiliates” as “‘FCA,’ ‘Stellantis,’ ‘we’ or ‘us’” (*Id.*) It provides the physical address of the FCA US Office of the General Counsel at 1000 Chrysler Drive, CIMS 485-13-62, Auburn Hills, M1 48326-2766.” (*Id.*) It gives the customer the option to opt out of the Agreement and states, “If you do not opt out, then this agreement to arbitrate is binding.” (*Id.*)

The evidence before the Court shows defendant wrote the agreement and intends to be bound by it. As in *Serafin*, Plaintiff has not disputed that defendant “performed all the duties required of it under the arbitration agreement.” (*Serafin, supra*, 235 Cal.App.4th at p. 177.)

Stay

The Arbitration Provision in the Lease indicates that any arbitration shall be governed by the Federal

Arbitration Agreement. (Brittain Decl., Ex. A.)

Under the FAA, courts must stay an action where “the issue involved in such suit or proceeding is referable to arbitration under an arbitration agreement.” (9 U.S.C § 3.)

Independent of the CAA and FAA, courts have inherent authority to stay proceedings. (*Landis v. North American Co.* (1936) 299 U.S. 248, 254 [“the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants”]; *Nederlandse Erts-Tankersmaatschappij, N.V. v. Isbrandtsen Co.* (2nd Cir. 1964) 339 F.2d 440, 441 [no authority under 9 U.S.C. § 3 to stay action, but stay permitted under district court’s inherent power to control its docket]; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 [“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency”].) Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court here would exercise its inherent authority to issue a stay pending the completion of binding arbitration.

Plaintiff’s opposition is silent as to Defendant’s request for a stay. The Court finds good cause to stay this action in granting Defendant’s Motion to Compel Arbitration.

Conclusion

Defendant’s motion to compel arbitration is **GRANTED**. The Court orders the Parties to submit their dispute to arbitration in accordance with the Arbitration Provision in the subject Lease Agreement. The Court orders this matter to be **STAYED** in full, pending conclusion of the arbitration.

The Court sets a Case Management Conference (CMC) / Arbitration Status Review **on March 23, 2027, in Dept. 34 at 8:30 a.m. Parties are ordered to file a joint statement on the status of the arbitration not less than ten (10) court days prior to the CMC.** Parties may appear at the CMC by Zoom.

13. 9:00 AM CASE NUMBER: C26-00599
CASE NAME: DANIEL ROBERSON VS. MERISSA BENTON
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: BENTON, MERISSA NICHOLE
TENTATIVE RULING:

The hearing on this motion is **CONTINUED** by the Court to November 9, 2026, 9:00 a.m., in Department 34.

14. 9:00 AM CASE NUMBER: C26-00599
CASE NAME: DANIEL ROBERSON VS. MERISSA BENTON
***HEARING ON MOTION IN RE: TO STRIKE**
FILED BY: BENTON, MERISSA NICHOLE
TENTATIVE RULING:

The hearing on this motion is **CONTINUED** by the Court to November 9, 2026, 9:00 a.m., in Department 34.

15. 9:00 AM CASE NUMBER: C26-02341
CASE NAME: JEFFREY RONALD MARSHALL VS. CITY ARMS EAST, LLC
MOTION TO APPEAR PRO HAC VICE AS TO MIRANDA HULKA FOR PLTFs
FILED BY: MARSHALL, JEFFREY RONALD
TENTATIVE RULING:

On July 30, 2026, Miranda Hulka of Quinn Emanuel Urquhart & Sullivan, LLP (“Quinn Emanuel”) filed an application for leave to appear and represent plaintiffs Jeffrey Ronald Marshall and Jeanette Rita Gurmendi (“Plaintiffs”) *pro hac vice* in this matter (the “Pro Hac Vice Application”). The application was set for hearing on September 14, 2026. The application is unopposed.

In addition, separate *pro hac vice* applications of other attorneys for Plaintiffs have also been filed and set for hearing on other dates. Those include the applications by Sophia F. Martell and Andrew Schapiro of Quinn Emanuel filed July 28, 2026 and July 30, 2026, respectively. Those applications were assigned much later hearing dates of December 7, 2026 and December 14, 2026. A further *pro hac vice* application was filed by Leigh Rome of Giffords Law Center to Prevent Gun Violence on July 30, 2026. That application was assigned a hearing date of December 14, 2026. These other pending *pro hac vice* applications are referred to herein collectively as the “Other Pro Hac Vice Applications.”

It is not clear to the Court why the Other Pro Hac Vice Applications were given different hearing dates.

In the Court’s discretion and otherwise in the exercise of the Court’s inherent authority and discretion to control the proceedings pending before it, the Court hereby advances the Other Pro Hac Vice Applications to be heard concurrently with the unopposed Pro Hac Vice Application of Miranda Hulka.

Analysis

Rule 9.40 of the California Rules of Court (“CRC”) sets forth the matters that must be addressed in an application to appear *pro hac vice* in a particular cause pending before the Court:

- (1) The applicant's residence and office address;
- (2) The courts to which the applicant has been admitted to practice and the dates of admission;
- (3) That the applicant is a licensee in good standing in those courts;
- (4) That the applicant is not currently suspended or disbarred in any court;
- (5) The title of each court and cause in which the applicant has filed an application to appear as counsel *pro hac vice* in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) The name, address, and telephone number of the active licensee of the State Bar who is attorney of record.

CRC 9.40 (d).

The declarations in support of the Pro Hac Vice Application of Miranda Hulka as well as the Other Pro Hac Vice Applications set forth the background of each of the counsel and adequately addresses the enumerated requirements.

Disposition

The Court finds and rules as follows:

1. The Pro Hac Vice Application of Miranda Hulka is **GRANTED**.
2. The Other Pro Hac Vice Applications are **GRANTED**.
3. The hearing dates of December 7, 2026 and December 14, 2026 regarding the Other Pro Hac Vice Applications are **VACATED**.
4. The moving parties shall prepare and submit a single proposed form of order as to all of the applications for the Court's review and approval.

16. 9:00 AM CASE NUMBER: MSC21-00846

CASE NAME: HE VS MERIDIAN

***HEARING ON MOTION IN RE: EXTEND THE 5-YEAR STATUTORY DEADLINE TO BRING A CASE TO TRIAL**

FILED BY:

TENTATIVE RULING:

On the Court's own motion, the hearing is **CONTINUED** to 9:00 a.m. on October 5, 2026.

17. 9:00 AM CASE NUMBER: MSC21-00846

CASE NAME: HE VS MERIDIAN

***HEARING ON MOTION IN RE: FOR LEAVE TO FILE THIRD AMENDED COMPLAINT**

FILED BY:

***TENTATIVE RULING**

On the Court's own motion, the hearing is **CONTINUED** to 9:00 a.m. on October 5, 2026.

18. 9:00 AM CASE NUMBER: N26-1361

CASE NAME: BAHR ANAYAT VS. DIRECTOR OF THE CALIFORNIA DEPARTMENT OF MOTOR VEHICLES

HEARING IN RE: PETITION FOR WRIT OF MANDATE OR OTHER EQUITABLE RELIEF AND STAY PENDENTE LITE

FILED BY: ANAYAT, BAHR

TENTATIVE RULING:

Petitioner Bahr Anayat ("Petitioner") filed a petition on August 3, 2026 (the "Petition"). The Petition was set for hearing on September 14, 2026.

Background

The Petition herein seeks a writ of mandate directing the DMV to vacate its administrative decision dated June 9, 2026.

No proof of service is on file herein.

Analysis

The writ Petition must be served in same manner as an ordinary civil action, i.e. under the rules for service of process. Code Civ. Proc. § 1107 ["However, when a writ of mandate is sought pursuant to the provisions of Section 1088.5, the action may be filed and served in the same manner as an ordinary

action under Part 2 (commencing with Section 307).”] (in pertinent part); see also *id.* at § 1088.5 (“In a trial court, if no alternative writ is sought, proof of service of a copy of the petition need not accompany the application for a writ at the time of filing, but proof of service of a copy of the filed petition must be lodged with the court prior to a hearing or any action by the court.”).

No proof of service has been filed, as noted above. Accordingly, the Court cannot take any action to adjudicate the Petition.

Disposition

The Court finds and orders as follows:

1. **PLAINTIFF TO APPEAR** to address service of the pending Petition.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C25-00242
CASE NAME: ALLIED WORLD SURPLUS LINES INSURANCE COMPANY VS. WILLIAM JOHNSON
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF ALLIED WORLD SURPLUS LINES**
INSURANCE COMPANY'S FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE
FILED BY: ATHENS INSURANCE SERVICE, INC.
TENTATIVE RULING:

On March 17, 2026, defendant and cross-complainant Athens Program Insurance Services, LLC (“Athens”) filed a motion to compel (the “Motion to Compel Further Responses”) responses to discovery served upon plaintiff Allied World Surplus Lines Insurance Company (“Allied”). The motion also seeks an order deeming the truth of the matters specified in requests for admissions served. The Motion to Compel Further Responses was set for hearing on September 14, 2026. The motion is opposed.

A joinder in the Motion to Compel Further Responses (the “Joinder”) was filed on April 16, 2026 by defendants, cross-complainants and cross-defendants Tyson & Mendes LLP, William Johnson, Robert Tyson, Patrick Mendes, Cayce Lynch, and Matthew Izu (the “T&M Defendants”).

Background

Athens served Allied with certain discovery requests on April 4, 2025, a first set of requests for production of documents consisting of four separate document production demands (the “Discovery Requests”). See Declaration of Michael T. Lee filed March 17, 2026 as part of the Motion to Compel (“Supporting Declaration”) ¶13 and **Exhibit 1** thereto. Several privileged logs were attached to the Supporting Declaration. *Id.* at **Exhibits 2 and 3**.

Notably, no copies of any written responses to the subject Discovery Requests were filed with the moving papers. See Motion to Compel Further Responses, including attached Supporting Declaration. Also important was the absence of any supporting Separate Statement at the time the Motion to Compel Further Responses was filed.

The moving party did not file a Separate Statement until June 30, 2026.

Opposition papers were filed on August 31, 2026.

A Reply was filed on September 4, 2026. This Reply included a declaration by the moving party's attorney (the "Reply Declaration") which included belated assertions of material information regarding the matter and proffered multiple new exhibits, and totaled 64 pages.

Analysis

The Motion to Compel Further Responses is procedurally defective.

1. Athens Failed To Timely File A Separate Statement In Support Of The Motion To Compel.

Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement, including a motion to compel further responses to a demand for inspection of documents. Rule 3.1345(a)(1)-(3); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) ("Rutter Civ. Pro.") § 8:602.5.

There are very specific requirements applicable to a Separate Statement. See CRC 3.1345(c) ("A separate statement is a separate document filed and served **with the discovery motion** that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response.") (emphasis added). Among other things, a proper Separate Statement must set forth the full text of both the request and response. *Id.* at (c)(1)-(2).

No Separate Statement in compliance with the requirements of CRC 3.1345 was filed by the moving with the moving papers.

For this reason alone, the motion is procedurally defective.

Even if the Court had discretion to consider the late filed Separate Statement on June 30, 2026 in support of the motion, the Court would decline to do so. The failure to timely file a Separate Statement was compounded by the failure to even proffer copies of the responses to the subject Discovery Requests with the moving papers.

Perhaps more importantly, the Separate Statement, when finally filed, materially expanded the scope of the relief sought. The moving party's Notice of Motion set forth the particular grounds for the motion:

The motion is made on the grounds that Allied has withheld or over-redacted documents, particularly internal communications among Allied personnel during the critical period after Tyson & Mendes was removed and Allied took over direct handling of the underlying Andreeva wrongful death action through the \$11 million settlement.

See Notice of Motion filed March 17, 2026 as part of the Motion to Compel Further Responses.

This notice says nothing about improper objections being made to the Subject Discovery. Yet, the belatedly filed Separate Statement contains contentions to the effect that Allied's stated objections lack merit. See e.g. Separate Statement, pp. 8 and 14.

2. Athens Failed To Proffer A Timely Declaration Regarding Meet And Confer Efforts.

A motion to compel further responses to a demand for inspection must be accompanied by a meet and confer declaration. Code Civ. Proc. § 2031.310(b)(2) ("The motion **shall be accompanied** by a meet and confer declaration under Section 2016.040.") (emphasis added); see also Code Civ. Proc. § 2016.040 ("A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith

attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”).

The Supporting Declaration said **nothing** about any meet and confer efforts. See Supporting Declaration, ¶¶2-5.

For this reason alone, the motion is also procedurally defective. See *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 138, fn. 9.

Even if the Court had discretion to consider the late filed Reply Declaration as satisfying the statutory requirements of Sections 2031.310(b)(2) and 2016.040, the Court would decline to do so.

This is not a case of supplying more information about the meet and confer process to address the other side’s arguments about whether that process was adequate. The moving Supporting Declaration did not proffer **anything** about any meet and confer process. Adducing the required information about the meet and confer efforts for the first time at the very end of the process frustrates the opposing party’s ability to respond to the factual showing required to be made in support of this kind of motion. The Court will not countenance such sandbagging.

Sanctions

The moving party persisted in prosecuting the Motion to Compel Further Responses without substantial justification based upon procedurally defective moving papers.

The Court finds that the moving party’s conduct constituted making a motion to compel discovery unsuccessfully and without substantial justification, pursuant to Code of Civil Procedure section 2023.010(h).

The Court finds that the foregoing conduct by the moving party constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions.

In unsuccessfully making this motion, the Court finds that the moving party did not act with substantial justification. Nor does the Court find any other circumstances make the imposition of monetary sanctions unjust.

Athens shall pay monetary sanctions to Allied in the amount of **\$3,000.00** (the “Monetary Sanctions”). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys’ fees, incurred by Allied as a result of the foregoing conduct by Athens. In fixing said amount, the Court has considered all evidence in the record before the Court, including, but not limited to, the Declaration of Teri Mae Rutledge filed August 31, 2026. The Court also mitigated the amount of the award in the exercise of its discretion and in light of the totality of the circumstances bearing on this matter.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel Further Responses is **DENIED**. The Joinder is **DENIED**.
2. The Monetary Sanctions shall be paid by Athens to Allied **within thirty (30) calendar days** of notice of entry of this order.
3. The Court shall issue the order after hearing.

20. 9:01 AM CASE NUMBER: C25-00242
CASE NAME: ALLIED WORLD SURPLUS LINES INSURANCE COMPANY VS. WILLIAM JOHNSON
*HEARING ON MOTION FOR DISCOVERY JOINDER TO MOTION TO COMPEL FURTHER RESPONSES
TO TO REQUEST FOR PROD
FILED BY: TYSON & MENDES LLP
TENTATIVE RULING:

See LINE 19, above.

21. 9:01 AM CASE NUMBER: C25-00575
CASE NAME: JANE DOE N.M. VS. DOES 1 THROUGH 100, INCLUSIVE
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF
DOCS OF RECORDS
FILED BY:
TENTATIVE RULING:

Pursuant to the order made at the Case Management Conference (CMC) on September 10, 2026, the hearing date is **CONTINUED** to **October 5, 2026, 9:00 a.m.**, in **Department 34**. The parties to notify the Court as soon as a final resolution has been reached.

22. 9:01 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
*HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO SPECIAL INTERROGATORIES, SET TWO
FILED BY: RODRIGUEZ, ROBERT D.
TENTATIVE RULING:

Plaintiff Robert D. Rodriguez ("Plaintiff") filed, on March 12, 2026, a motion to compel (the "Motion to Compel") responses by defendants Simona Yana S. Zakheim ("Ms. Zakheim") and Hyden Zakheim, LLP (the "Law Firm") (collectively, the "Zakheim Defendants") to Plaintiff's **Special Interrogatories, Set Two** (the "SROGs, Set Two"). The Motion to Compel was set for hearing on September 14, 2026. No opposition has been filed to date.

Background

It appears that the notice of motion contained an error. The caption page of the Motion to Compel, which includes the notice of motion, referenced an erroneous case number. The caption referred to case number "C23-02654." That case was dismissed or about April 8, 2025.

The case number for the pending action is C25-01397. In the exercise of its discretion and to ensure proper notice, the Court continues this matter to a new hearing date and will issue an order giving notice to all parties.

In addition, this is one of several pending discovery motions. The next group of discovery motions have hearing dates on November 2, 2026. Those motions (collectively, the "Defendant Masoudi Discovery Motions") are as follows:

1. Plaintiff's Motion to Compel Further Responses by defendant Elisabeth B. Masoudi ("Ms. Masoudi") to Plaintiff's Special Interrogatories, Set Two, filed April 20, 2026.

2. Plaintiff's Motion to Compel Further Responses by Ms. Masoudi to Plaintiff's Request for Admissions, Set Three, filed April 20, 2026.

3. Plaintiff's Motion to Compel Further Responses by Ms. Masoudi to Plaintiff's Demand for Production of Documents, Set Two, filed April 21, 2026.

Beyond the Defendant Masoudi Discovery Motions set in November 2026, there are not less than five more discovery related motions presently set in February 2027. All of these motions have been noticed by Plaintiff.

While the Court has made no determinations as yet as to the merits of the Defendant Masoudi Discovery Motions or other matters, the Court is concerned about what appears to be pattern of escalation of discovery disputes that may require it to order the appointment of a discovery referee. A preliminary review of the Defendant Masoudi Discovery Motions supports the Court's concerns that the discovery wrangling is not particularly focused on problem solving rather than escalation of disputes over issues as to both the requests and the responses.

To avoid having to consider a discovery referee and otherwise in the exercise of the Court's inherent authority and discretion to control the proceedings pending before it, the Court makes the following orders regarding the resolution of the pending Motion to Compel as well as the Defendant Masoudi Discovery Motions.

Disposition

The Court finds and orders as follows:

1. The hearing on the Motion to Compel is hereby **CONTINUED to November 2, 2026, 9:00 am**, in Department 34.
2. **Further Court Ordered Meet and Confer re Motion to Compel.** Plaintiff and the Zakheim Defendants are ordered to engage in further meet and confer regarding resolution of the Motion to Compel.
3. **Opposition to Motion to Compel.** If not resolved through such further meet and confer, any opposition to the Motion to Compel shall be filed by the Zakheim Defendants no later than **October 16, 2026**.
4. **Further Court Ordered Meet and Confer re Defendant Masoudi Discovery Motions.** The parties to the Defendant Masoudi Discovery Motions are ordered to engage in further meet and confer regarding resolution of the discovery requests and responses at issue in the Defendant Masoudi Discovery Motions **within twenty-one (21) days** of the date of this order. If not resolved through such informal talks, the parties to the Defendant Masoudi Discovery Motions are ordered to prepare and submit the following:
 - a. **Joint Separate Statement.** No later than **October 16, 2026**, the parties to the Defendant Masoudi Discovery Motions shall prepare and file, if all issues have not been resolved, a Joint Separate Statement as to any remaining discovery requests in dispute.
 - b. **Joint Separate Statement Content.** The Joint Separate Statement shall, in a table format with separate rows divided into five separate columns, identify: (1) the discovery request at issue with the full text of the request, (2) the full text of the written response (and containing **ONLY** the most recent and operative response at issue if a prior supplemental or amended response

has been made), (3) the propounding party's contentions regarding any inadequacy of the written discovery response and/or document production; (4) any response by responding party as to why the written discovery response and/or document production is adequate; and (5) any reply by the propounding party to the response. **No single entry on the Joint Separate Statement shall exceed 200 words (except as to the verbatim recitation of the requests and responses in Column Nos. 1 and 2).** Only a single Joint Separate Statement shall be prepared for all of the Defendant Masoudi Discovery Motions (with separate sections for each set of discovery requests at issue).

- c. **Preparation of Joint Separate Statement.** The propounding party shall prepare the initial draft of the Joint Separate Statement and fill in the information as to Column Nos. 1 through 3. The propounding party shall then provide that draft to the responding party who shall complete Column No. 4. The responding party shall then provide the draft back to the propounding party who shall then complete Column No. 5.
 - d. **Filing.** Upon completion of the Joint Separate Statement, the parties shall cooperate to arrange for its filing with the Court and ensure that both parties receive a final, file-endorsed copy of the pleading not less than one week in advance of the hearing date on the Defendant Masoudi Discovery Motions.
 - e. **Courtesy Hard Copy and Hard Copy Format.** The parties shall also cooperate to provide a courtesy hard copy of the Joint Separate Statement to Department 34 not less than one week in advance of the hearing date on the Defendant Masoudi Discovery Motions. **Except as to any cover pleading page(s), this hard copy shall be provided on legal sized paper and printed in a landscape orientation with no less than a 14 point font.** This is a courtesy copy formatted for the Court's use and may be re-formatted from the as-filed version.
5. It is not clear to the Court whether these particular discovery disputes have been submitted to the Court's Discovery Facilitator program. If so, the further meet and confer requirements above shall be satisfied by participation in such program. In any event, the parties shall comply with the requirements for the filing of the papers specified in Paragraphs 3 and 4a-4e as to all unresolved matters.
 6. The Court shall issue the order after hearing.